

Warsaw, July 22, 2022

## Decision

DS.523.2941.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended), Article 7(1) and (2) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and Article 6(1)(f) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ L 119 of 4.05.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 4.03.2021, p. 35, hereinafter referred to as GDPR), after conducting administrative proceedings regarding the complaint of Mr. P. G. about irregularities in the processing of his personal data by S. Sp. z o.o. (ul. [...], P.), represented by legal advisors M. W. and E. B. (Law Firm of Legal Advisors M., ul. [...], P.), consisting of unlawful processing of his email address: (...) despite the termination of his employment contract, the President of the Personal Data Protection Office denies the request.

## JUSTIFICATION

The Personal Data Protection Office received a complaint from P. G., hereinafter referred to as the Complainant, regarding irregularities in the processing of his personal data by S. Sp. z o.o. (ul. [...], P.), hereinafter referred to as the Company, represented by legal advisors M. W. and E. B. (Law Firm of Legal Advisors M., ul. [...], P.), consisting of unlawful processing of his email address: (...) despite the termination of his employment contract. In the content of the complaint, the Complainant indicated that within 5 minutes of being handed the termination of his employment contract on [...] February 2022, his access password to the Company's network and to his email account with the address (...) was changed by the CEO Mr. N. S. in the presence of the Company's president and the IT department manager. The Complainant indicated that since then he has had no access to them and that his email account remains active, and individuals directing correspondence to the address [...] do not receive any feedback. The Complainant also indicated that he was not informed by his supervisor who would have access to his correspondence (including private correspondence), to what extent, and for what purpose information from his email account would be processed, nor how long the account would remain active and the data stored. The Complainant stated that to his knowledge, no internal act of the employer, work regulations, or any other internal regulations in the Company govern the permissibility of using the company email for private purposes, nor do they contain rules regarding the handling of an employee's email upon leaving the job.

During the conducted administrative proceedings, the President of the Personal Data Protection Office established the following factual state:

The Complainant was an employee of the Company employed in the position of (...) until [...] May 2022. The Complainant received a termination of his indefinite employment contract from the Company on [...] February 2022, with a 3-month notice period. During the notice period, the Complainant was released from the obligation to perform work. Within the Company, until the termination of the employment relationship, the Complainant was responsible for supervising the division responsible for compliance and personal data protection, IT, HR (evidence: complaint from [...] May 2022, explanations from the Company from [...] May 2022 along with attachments). The Company indicated that in connection with the employment, a company email address (...) was created for the Complainant, the existence of which, in addition to enabling the performance of employee duties for the Company, allowed for the calculation of salaries in the Company's HR system. The Company explained that in connection with the employment, the Complainant was provided with relevant information via the internal electronic platform I. regarding the processing of his personal data, including the data protection and IT security policies applicable in the Company and the S. Group. The Complainant confirmed that he had familiarized himself with the procedures and principles for processing personal data applicable in the Company and the S. Group during the training sessions he attended (evidence: explanations from the Company from [...] May 2022 along with attachments -

Confirmation of the completion of training on personal data processing in the Company by the Complainant). The Company explained that the processing of data in the form of the employee's company email address – the Complainant's, occurs within the scope covered by the procedures applicable in the Company, based on the legitimate interest of the Company, which is conducting its business, as well as fulfilling the contract concluded with the employee. In connection with the termination of the employment relationship on [...] February 2022, along with the release from the obligation to perform work, the Company blocked the email address (...) in such a way that the account formally exists, but no one has actual access to it, including both the Company and the Complainant. The Company also indicated that the email address existed in connection with its connection to the HR system, based on which the Company calculated the Complainant's remuneration until the termination of employment. The Company stated that on the day the termination was handed over, the Complainant was informed in a phone conversation by the IT Department Manager about the scope of the blocking of his email address, who has access to the address. e-mail, to what extent the Company will use the email address and the principles regarding the further existence of the email address (evidence: Company's explanations from [...] May 2022 along with attachments). The Company indicated that throughout the S. Group, there are procedures regarding the handling of employees' email addresses and their assigned mailboxes, i.e. [...]. In connection with the principles applicable in the Company, only upon the formal termination of employment of a given employee, the email address is subjected to the following procedure by the Company: Step 1. After the expiration of the contract, based on data from the HR system, the mail server begins to send automatic replies for every email sent stating for people from S.: person XXX is no longer an active employee of the S. company. An email from people outside S. receives a response with the following content: "Thank you for your message, ... is no longer employed by S. company. For information, please contact: ...@[...] (This message was generated automatically. Please do not reply to it.)" Step 2. After 30 days from the account deactivation, replies to sent emails state: user does not exist. Step 3. After 60 days, the AD account (in the S. domain) is deleted, the mailbox is removed from the mail server and placed on "legal hold" — accessible only with the consent of the legal department of S. — the parent company in the S. Group (evidence: Company's explanations from [...] May 2022 along with attachments). The Company indicated that it did not familiarize itself with the content of messages sent to the address (...) during the period from [...] February to [...] May 2022. Individuals directing messages to the aforementioned address were not informed of the unavailability of the Complainant. The Company also indicated that an automatic reply to emails sent to the address (...) has been sent since [...] June 2022. The content of the set reply is: "Thank you for your message. P. G. is no longer an employee of S. company. For information, please contact [...]" (This message was generated automatically. Please do not reply to it.)" (evidence: Company's explanations from [...] June 2022 along with attachments - Information about the last login in S. systems (login/id P. G. is [...]). The Company explained that the blocking of the address (...) was carried out by authorized employees, i.e. Mr. L. Ś., (...) and Mr. N. S., (...) by changing the password to a random string of characters (evidence: Company's explanations from [...] June 2022 along with attachments – copies of authorizations granted to the aforementioned employees). After reviewing the collected evidence, the President of the Personal Data Protection Office considered the following. The GDPR defines the obligations of the administrator, which include processing personal data in accordance with the conditions specified in this regulation. The conditions for the legality of processing personal data are specified in Article 6(1) of the GDPR. These conditions are autonomous, therefore, to consider the process of personal data processing by the administrator as lawful, it is sufficient for him to meet one of these conditions. Regardless of the consent of the data subject (Article 6(1)(a) of the GDPR), the processing of personal data is permissible, among other things, when it is necessary for the fulfillment of a legal obligation imposed on the administrator (Article 6(1)(c) of the GDPR) and when it is necessary for purposes arising from the legitimate interests pursued by the administrator, except in situations where the interests or fundamental rights and freedoms of the data subject have overriding importance (Article 6(1)(f) of the GDPR). According to Article 5(1)(a) and (b) of the GDPR, personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject, and collected for specific, explicit, and legitimate purposes and not further processed in a manner

incompatible with those purposes.

At this point, it should be noted that the equipment, software, internet access, and assigned business email accounts provided to employees are the property of the employer and are an integral part of its enterprise and are made available to employees for purposes related to the performance of work. During the proceedings, it was established that the email address (...) was processed in connection with the employment of the Complainant in the position of (...) and was used for the performance of his duties related to supervising the department responsible for compliance and personal data protection, as well as in the procedure for calculating his remuneration by the Company's HR Department until [...] May 2022. The collected evidence also indicates that after the Complainant ceased to perform any function within the Company's operations, i.e. on [...] May 2022, the Company set up an automatic reply directed to all individuals contacting the Company via the email address (...), informing that the Complainant no longer holds any position in the Company, and for information, one should contact via the address (...). In the authority's assessment, the Company's explanations deserve consideration. Article 6(1)(f) of the GDPR, which the Company referred to, allows for the processing of personal data when it is necessary for the purposes of legitimate interests pursued by the administrator or by a third party, except in situations where the interests or fundamental rights and freedoms of the data subject requiring the protection of personal data have overriding importance, especially when the data subject is a child. In this case, it is therefore necessary to consider whether the process of personal data processing of the data subject – in this case, the Complainant, a former employee...

Companies – does not infringe on its interests, fundamental rights and freedoms, which require protection, and whether they are not superior to the legally justified interests of the Company. Referring to the analysis of the legally justified interest conducted by Witold Chomiczewski (see: Chomiczewski Witold. Legally Justified Interest as a Legal Basis for Data Processing – Concept. Legal Information System LEX, available at: <https://sip.lex.pl/#/publication/470099706>), the assessment process should take into account criteria such as, in particular: the nature of the administrator's interest, the type of interest of the data subject, the type of fundamental right or freedom, the type of personal data processed, the manner of processing, the risks arising from it for the data subject, the relationship between the data subject and the administrator, the age of the data subject, their individual situation, and the ease with which the data subject can bring the processing to an end.

In the case at hand, as confirmed by the collected evidence, the Company processes the business email address of the Complainant, which includes their name and surname. The Complainant is a former employee of the Company, and the email address (...) served the Complainant during their employment to carry out tasks related to performing the function of (...) and calculating their remuneration. After the termination of cooperation with the Complainant, the Company processes the Complainant's business email address only in a manner initiated by individuals who direct messages to the email address previously used by the Complainant as (...) of the Company to inform them of a new contact address via an automatic response. After the termination of the Complainant's employment, no one has accessed the content of messages sent to the address (...).

Regarding the allegation of access to the Complainant's personal data by unauthorized persons, namely Mr. L. Ś., (...) and Mr. N. S., (...) it should be noted that according to Article 29 of the GDPR, the data processor and any person acting on behalf of the administrator or the processor and having access to personal data process it solely on the instructions of the administrator, unless required by Union law or the law of a Member State. During the course of these proceedings, it was established that Mr. L. Ś., (...) and Mr. N. S., (...) are employees of the Company and have been granted authorizations in accordance with Article 29 of the GDPR to process the personal data of the Company's employees, which also entitles them to process the personal data of the Complainant as a former employee of the Company. Thus, the processing of the Complainant's personal data by Mr. L. Ś., (...) and Mr. N. S., (...) challenged by the Complainant, related to their execution of a work order - blocking the Complainant's access to the Company's network and the address (...) in connection with the termination of their employment contract, does not constitute a violation of their personal data protection.

In this factual and legal state, it should be recognized that the Company had and has a legally justified interest entitling it to process the email address (...) after the termination of the Complainant's employment. During the conducted evidentiary proceedings, the authority did not find that the processing violated the principles of data processing specified in Article 5(1) of the GDPR, as the Company limited the purpose of processing as well as the scope of the Complainant's processed data. The administrative proceedings conducted by the President of the Personal Data Protection Office serve to control the compliance of data processing with the provisions on personal data protection and are aimed at issuing an administrative decision restoring a lawful state based on Article 58(2) of the GDPR. The assessment made by the President of the Office in each case serves to examine the legitimacy of directing a command to a specific entity corresponding to the provisions of Article 58(2) of the GDPR aimed at restoring a lawful state in the data processing process - it is therefore justified and necessary only to the extent that irregularities in the data processing exist.

In this case, the authority has no grounds to issue any of the commands specified in Article 58(2) of the GDPR against the Company. The authority can only issue such a decision if there has been a violation of the provisions on personal data protection, which is not the case in this matter.

In this factual and legal state, the President of the Personal Data Protection Office decided as stated in the ruling.

The decision is final. Based on Article 7(2) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781) in conjunction with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2018, item 1302), the party dissatisfied with this decision has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office (address: Personal Data Protection Office, ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for exemption from court fees or for legal aid.

Print article

Metadata

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